

(Name of court)

at

Court office address

Form 28B: Statutory Declaration to Sheriff

Recipient(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Payor

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

My name is (full legal name)

I live in (municipality & province)

and I declare that the following is true:

1. I am ☐ a recipient under a payment order.
☐ an assignee of a recipient under a payment order.
☐ an agent of the Director of the Family Responsibility Office.
☐ other (Specify.)
2. On (date) a writ of seizure and sale was issued in this case, a copy of which is attached.
3. Since then, the amount owed by the payor has changed and, as of today, the amount owed stands at \$ with interest on it at the rate of % per year beginning on (date when interest begins)
4. Since then, the payor has: ☐ legally changed his/her name from to
☐ used the following alias(es):
☐ used the following spelling variations of his or her name or alias(es):
5. The amount in paragraph 3 includes unpaid support of \$ which, under subsection 4(1) of the *Creditors' Relief Act*, gets priority over other judgments and orders.
6. An additional *Assignment of Judgment of Costs* in the amount of (write NIL if none) \$ has been made in favour of Legal Aid Ontario which, under subsections 46(4) and 47(1) of the *Legal Aid Services Act, 1998*, must be deducted from the proceeds of the sale and paid to Legal Aid Ontario.

7. The amount in paragraph 3 includes \$ _____ as a fine for contempt of this court, a forfeited bond or a forfeited recognizance arising out of a civil proceeding and made payable to,
- ☐ His Majesty the King ☐ other (*Specify.*) _____
- and, under subsection 143(3) of the *Courts of Justice Act*, the writ of seizure and sale can be executed immediately to collect that amount without a direction to enforce.

Declared before me at _____
municipality

in _____
province, state or country

on _____
date _____
Commissioner for taking affidavits
(*Type or print name below if signature is illegible.*)

Signature
(*This form is to be signed in front of a lawyer, justice of the peace, notary public or commissioner for taking affidavits.*)